



INVITATION TO BID

ITB No. 22-05B

GROUNDS MAINTENANCE SERVICES

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purchasing@flaglerschools.com

Purchasing Department
1769 E. Moody Blvd, Bldg 2
2nd Floor – Finance
Bunnell, Florida 32110

www.FlaglerSchools.com

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LEGAL NOTICE

Flagler County School Board
Invitation to Bid (ITB) No. 22-05B
Grounds Maintenance Services

Flagler County School Board is seeking bids from qualified companies to provide grounds maintenance services on an as-needed basis.

Sealed Bids will be accepted until Thursday, January 20, 2022 at 12:00 p.m. Bids must be received by the Purchasing Department, Flagler County School Board, 1769 East Moody Blvd., Bldg. #2, Second Floor, Bunnell, FL 32110. Bids received after this deadline will not be accepted.

ITB documents can be obtained via the Flagler Schools website at www.flaglerschools.com/departments/finance/purchasing.

SCHEDULE OF EVENTS

Date	Description
December 29, 2021	Legal Advertisement
January 11, 2022	Question Deadline - due by 4:00pm
January 13, 2022	Addendum Released (if necessary)
January 20, 2022	Submittal Due Date - Due by 12:00pm Deliver to: Flagler County Schools Attn: Purchasing Department 1769 E. Moody Blvd, Bldg 2 - Second Floor Bunnell, FL 32110
January 27, 2022	Notice of Intended Decision
February 15, 2022	Board Approval

SECTION 1 – INSTRUCTIONS TO BIDDERS

Flagler County School Board is soliciting bids to provide a two (2) year initial contract for Grounds Maintenance on a district-wide basis, which may by mutual agreement between the School Board and the awarded Contractor, be renewable for up to one (1) additional two (2) year period. The bid is for services at various schools and facilities throughout the District. All work performed under this bid will be on an as-needed basis. The School Board makes no guarantee of a specific volume of work to be performed under this bid.

Authorized FCSB Representative

Kris Collora, NIGP, CPP
Flagler County Schools
1769 E. Moody Blvd, Bldg 2
2nd Floor – Finance
Bunnell, FL 32110
(386) 437-7526, ext. 1131

Cone of Silence

School Board members and personnel, with the exception of the Purchasing Services representative, are **not to be contacted** prior to the School Board's decision to approve or reject the final recommendation presented to it by the Superintendent or his designee. At the discretion of Flagler County Schools, failure to comply with this requirement will be grounds for disqualification.

Specifically, this **No-Contact Period** shall commence upon issuance of the Invitation to Bid and continue through and include the date the Flagler County School Board makes its determination to approve or reject the final recommendations.

Failure to meet any of these requirements may disqualify a Bidder from consideration.

Questions and Request for Clarifications

Bidders shall submit any questions and/or requests for clarifications via email to: purchasing@flaglerschools.com by the due date and time as indicated in the Schedule of Events.

Questions received after the deadline will not be considered. Inquiries must reference the ITB number in the subject line of the e-mail. Those interpretations which may affect the eventual outcome of this solicitation will be posted on the Flagler County Schools Purchasing web page for all prospective Bidders to view. Only the interpretation or correction so given by the Purchasing representative, in writing, shall be binding and prospective Bidders are advised that no other source is authorized to give information concerning, or to explain or interpret the ITB and the selection process. All such interpretations and supplemental instructions will be in the form of written Addenda to the ITB.

Right of Amendment of ITB

Flagler County School Board reserves the right to amend this ITB via Addenda for any reason prior to the Due Date.

Bid Preparation

Bidders interested in being considered for these services shall submit one (1) hardcopy response marked "Original" and two (2) hardcopies containing all original documents of the required response to the Invitation to Bid (ITB) and shall be signed by a person legally authorized to bind the company.

Bid Delivery

All Bids must be received by the due date and time as indicated. Bidder will be responsible for its timely delivery to Flagler County Schools, Purchasing Department, 1769 E. Moody Blvd., Bldg. #2, Second Floor - Finance, Bunnell, FL 32110. It is the Bidder's sole responsibility to ensure that its Bid is delivered at the proper time and to the proper place of the bid.

opening. Bids which for any reason are not delivered, will not be considered and will be returned to Bidder at the Bidder's expense. Bidders are encouraged to utilize the template as provided below.

Delivery of a package to any location other than the Flagler County Schools Purchasing Department does not constitute official receipt. Any package delivered after the advertised deadline will not be considered.

Note: Please ensure that if a third party carrier (Federal Express, Airborne, UPS, USPS, etc.) is used, that they are properly instructed to deliver your proposal only to the Flagler County Schools Purchasing Department address as identified.

Bidders are encouraged to utilize the template as provided below. All Bid documents must be in a sealed package, boldly and clearly marked as follows:

DO NOT OPEN - SEALED BID - DO NOT OPEN	
Company Name:	_____
ITB Number:	22-05B
ITB Title:	Grounds Maintenance Services
Bids Due:	Thursday, January 20, 2022 – 12:00pm
DELIVERY TO:	Flagler County Schools Purchasing Department 1769 E. Moody Blvd, Bldg 2 Second Floor - Finance Bunnell, FL 32110

Bid Submission

All Bids shall be signed by an officer or employee having authority to legally bind Bidder. Bidders should become familiar with any local conditions which may, in any manner, affect the services required. Bidder is required to carefully examine the ITB terms and to become thoroughly familiar with any and all conditions and requirements that may in any manner affect the work to be performed under the resulting contract. No additional allowance will be made due to lack of knowledge of these conditions. Bids not conforming to the instructions provided herein may be subject to disqualification at the sole discretion of the School Board.

Bid Preparation Cost

The costs of developing Bids are entirely the responsibility of Bidder and shall not be charged in any manner to FCSB. This includes, but is not limited to, the direct cost of personnel assigned to prepare Bidder's response to the ITB and any out-of-pocket expenses (including, but not limited to, travel, accommodation, supplies) incurred by Bidder in preparing the response to the ITB.

Verbal Instructions

No negotiations, decisions, or actions shall be initiated or executed by the Bidder as a result of any discussions with any FCSB employee. Only those communications that are in writing from the authorized representative identified above shall be considered as duly authorized expression on behalf of FCSB.

Withdrawal and Resubmission/Modification of Bids

Bidder may withdraw its Bid prior to the due date and time specified the schedule by submission of an email notification of its withdrawal by Bidder or agent, sent to the Purchasing Representative stated above. Thereafter, Bidder may submit a new Bid prior to such submission time specified in Schedule of Events. Modification offered in any other manner, oral

or written, will not be considered. Bids cannot be changed or withdrawn after the designated time for receipt.

Right of Withdrawal of ITB

Flagler County School Board reserves the right to withdraw this ITB for any reason prior to the execution of an Agreement.

Complete Document and Agreement

This document, its issued addenda, and any subsequent Contract, Agreement and addenda, shall be construed as the complete and binding documents, and Bidder/s shall not rely on any verbal representations from FCSB or its representatives as taking precedence over the written documents as outlined above.

Attachments

The following documents are attached to this ITB and must be fully completed, executed and attached to the Bid. Please organize the Bid in the order below.

- Attachment A – Bidder Acknowledgement
- Attachment B – Vendor Information
- Attachment C – Acknowledgement of Addenda
- Attachment D – Bidder’s Statement of Qualification
- Attachment E – Conflict of Interest Disclosure
- Attachment F – Certification Regarding Debarment, Suspension, and Other Responsibility Matters
- Attachment G – Drug Free Work Place Certification
- Attachment H – Sworn Statement of Florida Statute **Section 287.133(3) Public Entity Crime**
- Attachment I – Sworn Statement of Florida Statute **Section 1012.465 The Jessica Lunsford Act**
- Attachment J – Application for Certification
- Attachment K – Bidder References
- Attachment L – Local Preference
- Attachment M – Bidder Questionnaire
- Attachment N – Bid Price Sheet

SECTION 2 – GENERAL TERMS AND CONDITIONS

1. Award Method

Bids shall be awarded based on the lowest, responsive and responsible bidder which meets specifications with consideration being given to the specific quality of the product, conformity to the specifications, suitability to school needs, delivery terms, financial ability of the firm, qualifications, experience, reputation, integrity, past performance of the bidder and local preference.

The School Board reserves the right to award to more than one Bidder for the same or similar products or services.

The School Board reserves the right to make award(s) by individual item, group of items, all or none, or a combination thereof; on a geographical basis and/or on a district-wide basis with one or more supplier(s) or provider(s); to reject any and all offers or waive any irregularity or technicality in offers received.

Bidders are cautioned to make no assumptions unless their offer has been evaluated as being responsive. Any or all award(s) made as a result of this invitation shall conform to applicable local and state ordinances and laws.

2. Bid Validity

Any submitted bids, shall in its entirety, remain a valid bid for ninety (90) days after the bid submission date. Any bid on which the Bidder shortens the time for acceptance may be rejected.

3. Public Notices

Solicitation responses, tabulation and award will be made public in accordance with Florida Statute 119.071 and Florida Statute 286.0113.

4. Tie Bids

In the case of identical qualified bids, the following criteria shall be utilized to determine award of bid: (1) Certification under Florida Statutes as a Drug-Free Workplace, (2) Coin flip.

5. Quantity

Quantities set forth in this Invitation to Bid are estimates based on anticipated usage. They are subject to change (increase/decrease) in order to meet the needs of the FCSB. The bidder agrees that the price(s) offered shall be maintained irrespective of the quantity actually purchased.

6. Additional Services

Additional services shall include services that are not requested in this Invitation to Bid, but are within the scope of services available from the awardee(s). The District reserves the right to compete pricing with the successful bidder(s) for additional services or items and to add or not add these services to the awarded items. Additional services are not a factor for award.

7. Agreement:

A contract or agreement will be released, after award, for any work to be performed as a result of this ITB. This ITB, the Bidder's submission, negotiated terms, and the contract will constitute the complete agreement between Bidder and FCSB.

8. Pricing

Unless otherwise specified, prices offered shall remain firm for the contract period; all pricing of goods shall include FOB Destination, packing, handling, shipping charges and delivery to the District; prices for services shall include all expenses necessary to provide the requested service at the location specified.

9. Freight Terms

Unless otherwise specified, all shipments are to be shipped F.O.B. destination, with all transportation charges prepaid and title transferring to the district at time of delivery. The bidder pays and bears all freight related charges, owns goods in transit and files any claims. Bid prices shall include all cartage, drayage, packing, etc.

10. Payment Terms/Invoicing

The payment terms are Net 45 Days from receipt of invoice from Bidder. Itemized invoices must be provided, each bearing the Purchase Order Number. No payments are authorized in advance of receipt of service, nor for services not covered under this agreement or for services not acceptable to the FCSB.

11. Escalation

Submitted bid prices shall be firm for the contract period. In certain instances, price increases may be requested utilizing explicit data and facts supporting the request. FCSB reserves the right to refuse the request for price increase.

12. Estimates

Quantity and use estimates included in the bid are provided as a guide only. Actual quantities purchased under this bid may vary. The School Board reserves the right to re-negotiate prices during the term of the contract agreement if purchases are substantially more than the estimated quantity or use provided for in the bid.

13. Minor Bid Exceptions

This District reserves the right to waive minor deviations or exceptions in bids providing such action is in the best interest of the FCSB. Minor deviations/exceptions are defined as those that have no adverse effect upon the District's interest and would not affect the outcome of the award by giving a respondent an advantage or benefit not enjoyed by other respondents.

14. Brand Name and Alternatives

Brand and trade names listed are for informational purposes only and are not intended to limit competition. The brand name and model number of equivalent products should be indicated on the bid form. Substitution of other brands once items have been awarded is prohibited. The bidder must provide written notification from the manufacturer if an item is discontinued during the term of the contract and must file a written request for substitution.

15. Requirements:

FCSB has established certain requirements with respect to Bids to be submitted by prospective Bidders. The use of "shall", "must" or "will" (except to indicate simple futurity) in the ITB indicates a requirement or condition, which must be met. FCSB may, at its sole discretion, waive these requirements or conditions if the conditions are determined to be not material. A deviation from a requirement is material if the deficient response is not in substantial accord with the ITB requirements, provides an advantage to one Bidder over other Bidders, or has a potentially significant effect on the delivery, quantity, or quality of items proposed amount paid to Bidder, or for the cost to FCSB. Material deviations cannot be waived.

16. Sales Tax Exemption

As a public entity, FCSB is exempt from payment of State of Florida Sales Tax. Upon award of any Agreement, FCSB shall furnish appropriate documentation confirming such exemption.

17. Purchase Orders

A Purchase Order issued by the Purchasing Department is the only legal authorization for Contractors to perform services or provide commodities to the District. A commitment, either written or verbal, from District employees without a Purchase Order issued by the Purchasing Department does not constitute an obligation by the District to a Contractor. Contractors that perform services or provide commodities without a Purchase Order issued by the Purchasing Department do so at their own risk and at risk of non-payment.

18. Right to Accept / Reject

FCSB reserves the right to accept or reject any or all bids, to waive any irregularities and technicalities and may, at its sole discretion, request a clarification or other information to evaluate any or all Bids. FCSB reserves the right to reject any and/or all items proposed or award to multiple Bidders. Prior to board approval, FCSB may cancel the ITB or portions thereof, without penalty.

FCSB reserves the right to require Bidder to submit evidence of qualifications or any other information FCSB may deem necessary.

FCSB, in its sole judgment, will award or reject any or all Bids as is in the best interest of FCSB and the decision shall be final.

19. Non-Exclusive Agreement

This ITB does not establish an exclusive arrangement between the School Board and the Bidder. The School Board reserves the right to utilize any other contract, including but not limited to any contract awarded by the State of Florida, another city or county government agency, school board, community college/state university system, cooperative bid agreement, or to directly negotiate/purchase per School Board policy and/or State Board Rule 6A-1.012. The District also reserves the right to bid separately any item(s) and/or service(s) covered under this contract at any time during this contract term.

20. Other Governmental Agencies

All Bidders awarded contracts from this ITB may, upon mutual agreement, permit any school board, city, municipality or other government agency to participate in the contract under the same prices, terms and conditions, if agreed to by both parties.

21. State Term Contracts and Agreements:

Before purchasing nonacademic commodities and contractual services, the School Board reviews the purchasing agreements and State term contracts available under s. 287.056 to determine whether it is in the School Board's economic advantage to use the agreements and contracts. As such, all purchasing agreements and state term contracts available under s. 287.056 have been reviewed. In addition, the School Board may use the cooperative state purchasing programs managed through the regional consortium service organizations pursuant to their authority under s. 1001.451(3).

22. Default

Failure to perform according to this solicitation and/or resulting contract is cause for default. In the event of a default on a contract, the Bidder shall be responsible for attorney fees, court costs and damages.

23. Cancellation

The School Board reserves the right to cancel, recall, and/or reissue all or part of this ITB at any time.

24. Confidentiality of Information

The School Board reserves the right to retain all copies of submitted responses to the ITB. Bids submitted in response to this solicitation are subject to FS 119.07 ("Florida's Sunshine Law") and must be disclosed upon receipt of a public records request.

25. Solicitation of Employees

The School Board expressly prohibits bidders from making any offer of employment, equivalent offer, or any other offering of value to any Board Member or employee of the School Board.

26. Performance and Payment Bond

FCSB may request and require the Contractor to provide a performance and payment bond on new construction projects exceeding \$100,000.00. Both bonds will require 100% of the total project cost. The bond requirements will be included in the scope of work provided to the Contractor. The Contractor's estimate shall include as a separate line item all acquisition costs associated with the bond(s). FCSB will pay for reasonable costs incurred by the Contractor for obtaining a performance and payment bond.

27. Sub-Contracts

Nothing contained in this specification will be construed as establishing any contractual relationship between any sub-contractor(s) and the District. The Bidder(s) will be fully responsible to the District for the acts and omissions of the Sub-Bidder(s) and their employees. After award of contract, any changes in subcontractors shall require prior School District written approval.

28. Licenses and Permits and Compliance with Laws, Ordinances and Codes

Bidder shall be solely responsible for any and all licenses and permits which may be required by any authority applicable to the provision of services outlined in this ITB and any subsequent Agreement, and all costs for such licenses and permits shall be the sole responsibility of the Bidder throughout the ITB process and the term of any subsequent Agreement. Additionally, Bidder shall be solely responsible for compliance with any and all laws, ordinances, or other regulations of any authority having jurisdiction over Flagler County School Board, and all costs for such compliance shall be the sole responsibility of the Bidder throughout the ITB process and the term of any subsequent Agreement.

29. Insurance Requirements

Prior to the signing of the contract by the Flagler County School Board, the Bidder and Subcontractors, at its sole expense, must obtain and maintain during the term(s) of the contract, and applicable to firm, its employees, agents, and subcontractors, the following insurance:

1. Workers Compensation insurance in statutory amounts and Employers Liability in an amount not less than One Million Dollars (\$1,000,000) each accident/disease. This insurance shall apply to all Bidders' employees who will be engaged in the performance of the services in this Agreement.
2. Commercial General Liability insurance, including products and completed operations and contractual liability, arising from any and all claims for property damage and bodily injury, including death, in an amount not less than One Million Dollars (\$1,000,000) each occurrence and Two Million Dollars (\$2,000,000) aggregate.
3. Automobile Liability insurance, including all owned, non-owned, and hired vehicles used in conjunction with providing services outlined in this Agreement, for property damage and bodily injury, including death, in an amount not less than One Million Dollars (\$1,000,000) each accident.
4. Professional Liability insurance for any and all claims as a result of an action, lack of action, error or omission by Contractor, its employees or subcontractors in an amount not less than One Million Dollars (\$1,000,000) each claim. If such policy is written on a "claims-made" basis, coverage shall remain in effect for three (3) years after the expiration or termination of this Agreement and any of its extensions.
5. Errors and Omissions or Liability – The Design Professional shall carry a minimum of \$2,000,000.00 on projects estimated to cost not more than \$10,000,000.00 and a minimum of \$4,000,000.00 on projects estimated to cost more than \$10,000,000.00. Design Professionals selected for reuse of Flagler School Board prototype plans shall carry a minimum of \$2,000,000.00.

6. All insurance policies shall be issued by insurers licensed to do business in the State of Florida and any insuring company is required to have a minimum rating of A- in the "Best Key Rating Guide" published by A.M. Best & Company, Inc.
7. The School Board of Flagler County, its board members, employees, and representatives shall be listed both as an "Additional Insured" and "Certificate Holder" on the policy.
8. The Bidder must submit to the Purchasing Department a certificate of insurance prior to the start of the contract. In no event may the insurance coverage be less than described.

30. Equal Opportunity Employer

The School Board does not discriminate in admission or access to, or treatment or employment in its programs and activities, on the basis of race, color, religion, age, gender, national origin, marital status, disability, genetic information, sexual orientation, gender identity or expression, or any other reason prohibited by law.

31. Local Preference

The School Board has established a policy for the procurement of local goods and services.

32. Jessica Lunsford Act

As a condition of the award, the successful Bidder shall, at its expense, ensure that all of the Bidders' employees and the employees of Subcontractors who will be permitted access on School grounds when students are present meet the background screening requirements of Section 1012.465 Florida Statute, (Jessica Lunsford Act). All costs to comply with this requirement will be borne by the successful Bidder.

33. Legal Jurisdiction and Laws

Any contract resulting from this ITB shall be governed by the laws of Florida, without giving effect to the choice of laws principles thereof, and is deemed to have been executed, entered into and performed within Florida. The parties hereby irrevocably submit to jurisdiction in Florida, and venue shall be held in Flagler County. The parties hereby waive any objection to such jurisdiction and venue. Applicable provisions of all Federal, State, County, and Local laws, and all ordinances, rules and regulations shall govern development, Bid and evaluation of all bids received in response hereto and shall govern any and all claims and disputes.

34. Indemnification

Contractor shall indemnify, defend, and hold harmless the School Board, its board members, employees, and representatives from and against all claims, suits, actions, damages, losses, expenses, and/or a cause of action, including but not limited to, economic loss, reasonable attorneys' fees, and expenses, arising out of or in connection with this Agreement, provided that any such claims, suits, actions, damages, losses, expenses, and/or a cause of action, (i) is attributable to any person(s) claiming personal injury, bodily injury, sickness, disease, or death; or damage to tangible property of a third party including the loss of use, (ii) loss of Contractor's tools and equipment used in connection with this Agreement, and (iii) is caused or incurred in whole or in part by Contractor or any of its subcontractors, agents, or anyone directly or indirectly employed by contractor, subcontractor, agents, regardless if caused in part by the School Board. This indemnification shall not apply to any claims, suits, actions, damages, losses, expenses, and/or a cause of action, arising from the School Board's sole gross negligence or intentional misconduct. Nothing in this Agreement shall be deemed to affect the rights, privileges, or be deemed a waiver of, or limitation of sovereign immunity protection and limitations of liability pursuant to F.S Section 768.28. Any indemnity or assumption of liability hereunder shall be subject to the School Board's rights to sovereign immunity and any other limitations of liability pursuant to Florida law.

35. Assignment and Amendment of Contract:

This contract or agreement is personal to the parties herein and may not be assigned, in whole or in part, by Bidder without prior written consent of FCSB. Bidder herein shall not assign payments under this contract or agreement without the prior written consent of FCSB.

36. Suspension of Work:

FCSB may in its sole discretion suspend any or all activities under the Contract or purchase order, at any time, when in the best interests of FCSB to do so. FCSB shall provide the Bidder written notice outlining the particulars of the suspension. Examples of the reason for suspension include, but are not limited to, budgetary constraints, declaration of emergency, or other such circumstances. After receiving a suspension notice, the Bidder shall comply with the notice and shall not accept any purchase orders. Within ninety days, or any longer period agreed to by the Bidder, FCSB shall either (1) issue a notice authorizing resumption of work, at which time activity shall resume, or (2) terminate the Contract or purchase order. Suspension of work shall not entitle the Contractor any additional compensation.

37. Termination for Convenience:

FCSB, by written notice to Bidder, may terminate the Contract in whole or in part when FCSB determines in its sole discretion that it is in its best interest to do so. Bidder shall not furnish any product after it receives the notice of termination, except as necessary to complete the continued portion of the Contract, if any. Bidder shall not be entitled to recover any cancellation charges or lost profits.

38. Termination for Cause:

FCSB may terminate the Contract if Bidder fails to: (1) deliver the product within the time specified in the Contract or any extension, (2) maintain adequate progress, thus endangering performance of the Contract, (3) honor any term of the Contract, or (4) abide by any statutory, regulatory, or licensing requirement. Rule 60A-1.006(3), F.A.C., governs the procedure and consequences of default. Bidder shall continue work on any work not terminated. Except for defaults of subcontractors at any tier, Bidder shall not be liable for any excess costs if the failure to perform the Contract arises from events completely beyond the control, and without the fault or negligence, of Bidder. If the failure to perform is caused by the default of a subcontractor at any tier, and if the cause of the default is completely beyond the control of both Bidder and the subcontractor, and without the fault or negligence of either, Bidder shall not be liable for any excess costs for failure to perform, unless the subcontracted products were obtainable from other sources in sufficient time for Bidder to meet the required delivery schedule. If, after termination, it is determined that Bidder was not in default, or that the default was excusable, the rights and obligations of the parties shall be the same as if the termination had been issued for the convenience of FCSB. The rights and remedies of FCSB in this clause are in addition to any other rights and remedies provided by law or under the Contract.

39. Cancellation of Award / Termination:

In the event any of the provisions of this solicitation are violated by Bidder(s), Purchasing Services will give written notice to Bidder(s) stating the deficiencies and unless the deficiencies are corrected within ten (10) business days, recommendation will be made to FCSB for immediate cancellation. Upon cancellation hereunder, FCSB may pursue any and all legal remedies as provided herein and by law.

The awarded contractor will have the option to terminate the contract upon written notice to the Purchasing Representative. Such notice must be received at least 90 days prior to the effective date of termination.

Cancellation of contract by the awarded contractor may result in removal from Bidders/Bidder list for a period of three years.

40. Conflict of Interest:

All Bidders must disclose the name of any officer, director, or agent who is also an employee of FCSB. All Bidders must disclose the name of any School Board employee who owns, directly or indirectly, any interest in the Bidders' business or any of its branches.

41. Drug-Free Workplace:

If applicable, Bidder shall provide a statement concerning its status as a Drug-Free Work Place. Bids received which are equal with respect to price, quality, and service and that have provided proper certification that a business has implemented a drug-free workplace program, shall be given preference in the award process.

42. False or Misleading Statements:

Bids which contain false or misleading statements, or which provide references which do not support an attribute or condition claimed by Bidder may be rejected. If in the opinion of FCSB such information was intended to mislead FCSB in its evaluation of the Bid, and the attribute, condition, or capability is a requirement of this ITB, it will be the basis for rejection of the Bid.

43. Funding Out / Termination / Cancellation:

Section 237.161, Florida Statutes, et seq., prohibit school boards from creating obligations in anticipation of budgeted revenues from one fiscal year to another without year-to-year extension provisions in the agreements.

It is necessary that fiscal funding out provisions be included in all Bids in which the terms are for periods longer than one (1) year. Therefore, the following "Funding Out" provision is an integral part of this solicitation and must be agreed to by all Bidders:

The School Board may, during the contract period, terminate or discontinue the services covered in this Bid at the end of the School Board's then current fiscal year upon ninety (90) days' prior written notice to the successful Bidder.

Such prior written notice will state the following: "The lack of appropriated funds is the reason for termination. This includes an agreement not to replace the services being terminated with services similar to those covered in this Bid from another contractor in the succeeding funding period. This written notification will thereafter release the School Board of all further obligations in anyway related to the services covered herein."

The Funding Out statement must be included as part of any agreement. No agreement will be considered that does not include this provision for "funding out."

44. Indemnification / Hold Harmless Agreement:

This General Condition is NOT subject to negotiation and any bid that fails to accept these conditions will be rejected as "non-responsive", unless bidder is entitled to sovereign immunity by action of the Florida Legislature. Each party agrees to be fully responsible for its acts of negligence, or its agents' acts of negligence when acting within the scope of their employment and agrees to be liable for any damages resulting from said negligence to the extent allowable pursuant to Section 768.28, Florida Statutes. Nothing herein is intended to serve as a waiver of sovereign immunity by the School Board. Nothing herein shall be construed as consent by the School Board to be sued by third parties in any matter arising out of any contract. Bidder shall hold harmless and defend the School Board and its agents and employees from all suits and actions, including attorney's fees and all costs of litigation and judgments of any name and description arising out of or incidental to the performance of this contract or work performed thereunder. This provision shall also pertain to any claims brought against the School Board by an employee of the named Bidder, any Subcontractor, or anyone directly or indirectly employed by any of them. The bidder's obligation under this provision shall not be limited in any way by the agreed upon contract price as shown in this Contract or the bidder's limit of, or lack of, sufficient insurance protection.

45. Legal Requirements:

It shall be the responsibility of Bidder to be knowledgeable of all federal, state, county and local laws, ordinances, rules and regulations that in any manner affect the items covered herein which may apply. Lack of knowledge by Bidder(s) will in no way be a cause for relief from responsibility. Bidders doing business with FCSB are prohibited from discriminating against any employee, applicant, or client because of race, creed, color, national origin, sex, or age with regard to, but not limited to, the following: employment practices, rates of pay or other compensation methods, and training selection.

46. Intellectual Property:

Bidder, without exception, shall indemnify and save harmless the School Board of Flagler County, Florida, Flagler County Schools, and its employees from liability of any nature or kind including cost and expenses for or on account of any copyrighted, patented, or unpatented invention, process, or article manufactured or used in the performance

of the contract, including its use by FCSB. If Bidder uses any design, device, or materials covered by letters, patent, or copyright, it is mutually agreed and understood, without exception, that the proposed prices shall include all royalties or costs arising from the use of such design, device, or materials in any way involved in the work. In addition, FCSB shall maintain all rights to the written documentation, electronic media, and other materials provided by Bidder in response to this Bid.

47. Non-Collusion:

Bidder certifies that this offer is made without prior understanding, agreement, or connection with any corporation, firm or person submitting an offer for the same materials, services, supplies, or equipment and is in all respects fair and without collusion or fraud.

No premiums, rebates or gratuities are permitted, either with, prior to or after any delivery of material or provision of services. Any violation of this provision may result in the contract cancellation, return of materials or discontinuation of services.

48. Public Entity Crimes:

A person or affiliate who has been placed on the convicted contractor list following a conviction for a public entity crime may not submit a response to a contract to provide any goods or services to a public entity, may not submit a response to a contract with a public entity for the construction or repair of a public building or public work, may not submit responses on leases of real property to a public entity, may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity, and may not transact business with any public entity in excess of the threshold amount provided in Section 287.017, Florida Statutes, for category two for a period of 36 months from the date of being placed on the convicted contractor list.

Bidder certifies, by submission of this ITB, that neither it nor its principals is presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any Federal department or agency.

49. Violation: A violation of any of the stipulations, terms, and/or conditions listed and/or included herein may result in the bidder being removed from the School Board's bid list and the bidder being disqualified from conducting business with the School Board for a period of time to be determined on a case-by-case basis.

50. Time of the Essence: The Contractor acknowledges that time is of the essence to complete the work as required under its contract(s) with FCSB. The Contractor agrees that all work shall be performed diligently and uninterrupted at such a rate of progress as will ensure full completion thereof within the contractually required time. Should the Contractor neglect, fail, or refuse to complete the work within the time specified by the FCSB representative for each project, then the Contractor shall pay to FCSB the daily liquidated damage sum of up to \$1,000.00 for each and every calendar day that the Contractor fails to timely complete the time stipulated for completing the work, not as a penalty but as liquidated damages for breach of Contract as set forth herein.

51. Protest: Any person who is adversely affected by a decision concerning this procurement, shall file a Notice of Intent to Protest in writing within 72 hours after the notice of decision is posted, excluding Saturdays, Sundays, and legal holidays. A formal written protest shall be filed no later than 10 days after the notice of intent to protest is filed. The Notice of Intent to Protest and formal written protest shall be filed with the Purchasing Department, Flagler County School Board, 1769 East Moody Blvd., Bldg. #2. The protest shall state the facts and law upon which the protest is based. Failure to file a protest or failure to post the bond or other security within the time frames or in the manner described above shall constitute a waiver of proceedings under Chapter 120, Florida Statutes.

52. References: List at least three (3) recent commercial or government references where the proposed services have been provided within the past three (3) years. Use of the attached reference form will aid in evaluation. Unless specifically asked by the School Board, the School Board shall not be listed as a reference.

53. Compliance with Federal Regulations:

All contracts involving Federal funds will contain certain provisions required by applicable sections of Title 34, Section 80.36(l) and Section 85.510 Code of Federal Regulations. The consultant certifies by signing the Bid that the consultant and its principals are not presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in Federally-funded transactions and may, in certain instances, be required to provide a separate written certification to this effect. During the term of any contract with FCSB, in the event of debarment, suspension, proposed debarment, declared ineligible or voluntarily excluded from participation in Federally-funded transactions, the Consultant shall immediately notify the Purchasing Representative, in writing. Bidder will also be required to provide access to records which are directly pertinent to the contract and retain all required records for seven years after final payments are made.

54. E-Verify:

Section 448.095, F.S., requires the use the U.S. Department of Homeland Security's E-Verify system, <https://e-verify.uscis.gov/emp>, to verify the employment eligibility of all employees hired during the term of the Agreement.

In accordance with Florida Statute 448.095(2), Bidder will provide evidence (i.e.: their e-Verify number) of compliance with use of the e-Verify system to verify the work authorization status of all newly hired employees and all Subcontractors.

55. Public Records

As a public entity, FCSB is subject to any and all public records regulations in effect in the State of Florida. As such, any and all correspondence and documentation associated with this ITB and any subsequent Agreement should be assumed to be subject to public records disclosure.

56. Davis-Bacon Act (34 CFR 80.36(i)(4))

When applicable, all vendors, contractors and subcontractors must comply with the Davis-Bacon Act (40 U.S.C. 276a to 276a-7) as supplemented by the Department of Labor regulations (29 CFR part 5). (Construction contracts in excess of \$2000 awarded by grantees and sub-grantees when required by Federal grant program legislation). (Applies to all construction contracts in excess of \$2000 awarded by the District and sub-grantees when required by Federal grant program legislation).

57. Compliance with the Copeland "Anti-Kickback" Act

When applicable, the contractor shall comply with 18 U.S.C. § 874, 40 U.S.C. § 3145, and the requirements of 29 C.F.R. Part 3 as may be applicable, which are incorporated by reference into this contract. Subcontracts. The contractor or subcontractor shall insert in any subcontracts the clause above and such other clauses as FEMA may by appropriate instructions require, and also a clause requiring the subcontractors to include these clauses in any lower tier subcontracts. The prime contractor shall be responsible for the compliance by any subcontractor or lower tier subcontractor with all of these contract clauses. A breach of the contract clauses above may be grounds for termination of the contract, and for debarment as a contractor and subcontractor as provided in 29 C.F.R. § 5.12."

58. Public Records Law:

IF THE CONTRACTOR HAS QUESTIONS REGARDING THE APPLICATION OF SECTION 119.0701, FLORIDA STATUTES, TO THE CONTRACTOR'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS CONTRACT, CONTACT THE SCHOOL BOARD OF FLAGLER COUNTY CUSTODIAN OF PUBLIC RECORDS AT 386.437.7526, EXT. 1105, GAVINK@FLAGLERSCHOOLS.COM, FLAGLER COUNTY PUBLIC SCHOOLS, RECORDS MANAGEMENT, 1769 E. MOODY BLVD., BLDG. 2, BUNNELL, FL 32110.

SECTION 3 – SCOPE OF WORK/SERVICES

The purpose of this Invitation to Bid is to award a contract(s) for Grounds Maintenance Services at various schools and facilities throughout the District. All work performed under this bid will be on an as-needed basis. The School Board makes no guarantee of a specific volume of work to be performed under this bid.

All work performed will always be in the best interest of safety, especially when students are present in and around designated mowing areas. No power equipment shall be operated in the vicinity of students during periods such as class change, recess, after school care, fire drills, etc. Proper operation of equipment is the Contractors responsibility.

Qualifications

To be eligible, the bidder must have all required licenses, permits, etc. as required in the State of Florida, have been in business a minimum of three (3) years, illustrate that grounds maintenance services are the primary means of business and have sufficient equipment and personnel.

Term

This term is for two (2) years with one, two (2) year renewal options for a potential term of four (4) years upon mutual agreement of both parties. The contract is estimated to begin February 15, 2022.

References

The Bidder must include verifiable references demonstrating the Bidder's experience.

Contractor Requirements / Responsibilities

- Contractor shall provide and pay for all necessary labor, equipment, tools, materials, transportation, supervision, and licenses necessary to complete the work as specified. This would include, but not be limited to, all necessary personal safety equipment.
- The billable hourly rate shall start upon arrival at the job site and end upon departure from the site.
- Contractor shall be responsible to secure all permits required in order to complete projects per local, state, and federal codes. All permit applications shall be submitted to FCSB Plant Services Department for approval prior to beginning any work. No permit fees shall be charged or included, however, failed inspections will be charged at \$50.00 each and deducted from final invoice.
- Required inspections, correction notices and completion certificates shall be the responsibility of the Contractor.
- Projects shall be completed as per plans and/or scope of work from FCSB. Required Inspections, correction notices and completion certificates shall be the responsibility of the contractor.
- All material and equipment shall meet or exceed scope expectations and be installed as per FCSB specifications.
- Contractor must comply with all local, state, and federal codes and School Board Rules.
- Contractor shall be responsible for any damage to FCSB property, personnel property, or visitor property due to negligence on the part of the Contractor's employees. Contractor agrees to repair, at own expense, any damage that was caused by the Contractor or their employees.
- Contractor will be responsible for the removal of any blemish, tarnish or marking left on FCSB grounds resulting from the awarded Contractors equipment. Specifically, but not limited to, concrete.

- Contractor shall, and in addition to all other guarantees, be responsible for faulty labor or workmanship and shall promptly correct improper work, without cost to FCSB, within forty-eight (48) hours after receipt of notification of such faulty labor or workmanship. If Contractor fails within forty-eight (48) hours to correct defects, FCSB shall be entitled to have such work remedied and the Contractor shall be fully liable for all costs and expense reasonably incurred by FCSB.
- Contractor (employees) must sign in and out (upon arrival and departure) when working at any FCSB facility. Only employees of the Contractor who have met the background screening and clearance requirements of FCSB will be permitted on FCSB grounds.
- Any work deemed disruptive by FCSB to the operation of the school may require work to be performed after school hours or on a non-school day.
- If conditions exist which prevent the Contractor from completing scheduled services, then the Contractor is required to contact the appropriate FCSB Representative within twenty-four (24) hours to reschedule remaining work.
- FCSB will ensure that trash is removed prior to arrival of the Contractor.
- If limbs or branches need to be picked up prior to mowing, it is the Contractor's responsibility to do so.
- FCSB reserves the right to make routine, quality inspections at any time. Contractor shall be responsible to ensure each location site is in excellent condition upon work completion upon each scheduled time. No clipping left on walks, parking areas, or streets etc.
- Work hours shall be between 7:00a.m. and 4:00p.m. Monday through Friday. Scheduled activities may restrict work hours at select locations. All work shall be completed between these hours unless other arrangements are made the FCSB Representative. It should be noted that if an unforeseen situation arises at any school or facility that will interrupt the services requested, an authorized FCSB Representative will contact the Contractor. The services may or may not be rescheduled, whichever is in the best interest of FCSB.
- All company vehicles and employees are required to have appropriate company logos on apparel clearly identifying the company during any scheduled service. This also includes jackets.
- The Contractor shall report any issues to the FCSB Representative.
- Contractor shall not assign any part of this contract, or award any work under this contract to any Subcontractor without approval of FCSB Representative.
- Contractor will notify FCSB Representative immediately upon finding any hazards or vandalism on FCSB sites or accidental property damage by contracted staff.

Scope of Services

Services may include, but are not limited to:

Mowing:

- All grass shall be clean cut with a sharp blade to a uniform height of 3". It is understood that no cut will be so low as to damage the turf.
- Areas that cannot be mowed using a large mower due to slope or contour shall be mowed with the appropriate size equipment.
- All retention ponds and ditches which are in the highlighted areas of each school/facility must be trimmed with a mower or weed-eater/bush-blade to the water line to keep a clean cut.

Blowing:

- The sidewalks and other paved surfaces shall be swept or blown of all grass clippings.

String Trimming and Edging:

- The edges of all sidewalks, curbs, flowerbeds, shrub bed lines and tree rings exposed to turf and other vegetation shall be edged.
- String trimming shall be provided to areas next to buildings, playground equipment, light poles, and fence lines. The trimming shall be approximately 16" in width and shall match the height of adjoining grass.

Tree Trimming:

- Trees shall be neatly pruned and/or clipped to preserve the natural character and in a manner appropriate for each plant.
- Broken or bruised limbs shall be removed with a clean cut.
- All clippings shall be taken up and properly disposed of.

Hedge Trimming:

- Hedges shall be pruned to match the natural form of the shrubs and pattern of trimming that has been established.

Light Grading:

- The type of light grading work to be done but, not limited to: unpaved parking areas, playing fields, leveling of material around playground equipment, etc. The rate is to be based on the actual operating time of the equipment.

Bush Cutting:

- Provide a separate on-site hourly rate for additional bush cutting that may be required separate from the regular grounds maintenance requirements at each school site.

Miscellaneous Services:

- Miscellaneous services include, but not limited to: mulching flower beds; weeding flower beds; tree trimming; installing landscape timbers; laying sod; fertilizing trees, shrubs and grass; spreading sand/fill dirt; clearing debris from parking lots.

Additional Materials:

- Provide a markup over cost for materials as may be requested as needed. Items may include, but not limited to: mulch, landscape timbers, sod, fertilizers, sand and fill dirt. FCSB reserves the right to obtain price quotes for materials from other Contractors.

SECTION 4 – REQUIRED DOCUMENTS

The following documents are included with this ITB and must be fully completed, executed and attached to the Bid. Please organize the Bid in the order below.

- Attachment A – Bidder Acknowledgement
- Attachment B – Vendor Information
- Attachment C – Acknowledgement of Addenda
- Attachment D – Bidder’s Statement of Qualification
- Attachment E – Conflict of Interest Disclosure
- Attachment F – Certification Regarding Debarment, Suspension, and Other Responsibility Matters
- Attachment G – Drug Free Work Place Certification
- Attachment H – Sworn Statement of Florida Statute **Section 287.133(3) Public Entity Crime**
- Attachment I – Sworn Statement of Florida Statute **Section 1012.465 The Jessica Lunsford Act**
- Attachment J – Application for Certification
- Attachment K – Bidder References
- Attachment L – Local Preference
- Attachment M – Bidder Questionnaire
- Attachment N – Bid Price Sheet



Attachment A
Bid Acknowledgement

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

The Bidder hereby certifies by submission and signature of this Bid that Bidder complies fully with this ITB. In addition, the representative below is duly authorized to sign this Bid on behalf of Bidder, company, or corporation and fully understands that by virtue of signing and returning this Bid Acknowledgement represents complete and unconditional acceptance of the requirements, terms and conditions of this ITB and all attachments, exhibits and any addenda released hereto.

Authorized Signature	Name & Title (printed)	
Bidder Name	Federal I.D. #	
Street Address		
City	State	Zip
Telephone	E-Mail Address	
Date of Bid	Contact Person, Number	

This form must be completed and returned with your Bid. All Bids must be signed by an officer or employee having authority to legally bind Bidder(s).



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Attachment B
Vendor Information

Name of Entity, Individual(s), Partners or Corporation:

Taxpayer Identification Number (SSN/EIN): _____

Business/Purchase Order Address:

Address _____

City _____ State _____ Zip Code _____

Phone _____ Fax _____

Contact _____

E-mail _____

Remittance Address (if different from above):

Address _____

City _____ State _____ Zip Code _____

Phone _____ Fax _____

Contact _____

E-mail _____

Payment Method: ☐ CHECK
 ☐ ACH (If ACH, Flagler Schools will email an enrollment form)

Current W-9 Attached? ☐ YES



Attachment C

Acknowledgement of Addenda

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

Acknowledgment is hereby made of receipt of the following Addenda issued during the solicitation period:

Addendum No.	Dated

Bidder

Authorized Signature



Attachment D

Bidder's Statement of Qualification

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

Please provide written responses to the following questions. If the answer to any of the questions is "Yes", Bidder shall describe fully the circumstances, reasons therefore, the current status, and ultimate disposition of each matter that is the subject of this inquiry.

1. Has Bidder been declared in default of any contract? ☐ Yes ☐ No
2. Has Bidder forfeited payment of performance bond issued by a surety company on any contract? ☐ Yes ☐ No
3. Has an uncompleted contract been assigned by Bidder's surety company on any payment of performance bond issued to Bidder arising from its failure to fully discharge all contractual obligations thereunder? ☐ Yes ☐ No
4. Within the past three (3) years, has Bidder filed for reorganization, protection from creditors, or dissolution under the bankruptcy statutes? ☐ Yes ☐ No
5. Is Bidder now the subject of any litigation in which an adverse decision might result in a material change in Bidder's financial position or future viability? ☐ Yes ☐ No
6. Is Bidder currently involved in any state of a fact-finding, negotiations, or resistance to a merger, friendly acquisition, or hostile take-over, either as a target or as a pursuer? ☐ Yes ☐ No
7. License Sanctions: List any regulatory or license agency sanctions. The School Board may perform a background check on Bidder with all state and regulatory agencies.
8. Bidder must provide the name and address of all persons or entities serving or intending to serve as principals in Bidder's Bidder.

Bidder Name

Authorized Signature



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Attachment E

Conflict of Interest Disclosure

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

Conflict of Interest: Bidders shall be familiar and comply with all applicable conflict of interest legal requirements including Florida's Code of Ethics for Public Officers, Chapter 112, Part III, Florida Statutes. Bidders must complete and submit this Conflict of Interest Disclosure. The form must be signed by an officer or by an authorized individual and notarized by a notary public. The Bidder may disclose any additional information regarding the existence or appearance of a conflict of interest under state or local laws. If the Bidder or its authorized agent omits, misrepresents or falsifies material information, the selection of the Bidder and any executed contract shall be void.

In accordance with the Conflict of Interest provision, the Bidder certifies the following:

- a. _____ There are no identified conflicts of interest.
- b. _____ The following potential conflicts of interest have been identified:

Name of School Board Affiliate

Relationship to Business

Business Ownership Percentage

Bidder Name

Authorized Printed Name

Authorized Signature

Title of Authorized Official

Notary Public

State of: _____ County of: _____

The foregoing instrument was acknowledged before me this ____ day of _____ 20__ by _____.

Notary Public Signature: _____

Commission Expires: _____

(Seal)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____



Attachment F

**Certification Regarding Debarment, Suspension, and Other
Responsibility Matters - Primary Covered Transactions**

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

This certification is required by the regulations implementing Executive Order 12549, Debarment and Suspension, 7 CFR Part 3017, Section 3017.510, Participants' responsibilities. The regulations were published as Part IV of the January 30, 1989 Federal Register (pages 4722-4733). Copies of the regulations may be obtained by contacting the Department of Agriculture agency offering the proposed covered transaction.

BEFORE COMPLETING CERTIFICATION, READ INSTRUCTIONS BELOW

1. The prospective primary participant certifies to the best of its knowledge and belief, that it and its principals:
(a) are not presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from covered transactions by any Federal department or agency; (b) have not within a three-year period preceding this Bid been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State or local) transaction or contract under a public transaction; violation of Federal or State antitrust statutes or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, or receiving stolen property; (c) are not presently indicted for or otherwise criminally or civilly charged by a governmental entity (Federal, State or local) with commission of any of the offenses enumerated in paragraph (1) (b) of this certification; and (d) have not within a three-year period preceding this application/Bid had one or more public transactions (Federal, State or local) terminated for cause or default. Where the prospective lower tier participant is unable to certify to any of the statements in this certification, such prospective participants shall attach an explanation to this Bid.

Bidder Name

PR/Award Number or Project Name

Printed Name of Authorized Representative

Authorized Signature

Date

Instructions for Certification

1. By signing and submitting this form, the prospective primary participant is providing the certification set out above in accordance with these instructions.
2. The inability of a person to provide the certification required below will not necessarily result in denial of participation in this covered transaction. The prospective participant shall submit an explanation of why it cannot provide the certification set out on this

form. The certification or explanation will be considered in connection with the department or agency's determination whether to enter into this transaction. However, failure of the prospective primary participant to furnish a certification or an explanation shall disqualify such person from participation in this transaction.

3. The certification in this clause is a material representation of fact upon which reliance was placed when the department or agency determined to enter into this transaction. If it is later determined that the prospective primary participant knowingly rendered an erroneous certification, in addition to other remedies available to the Federal Government, the department or agency may terminate this transaction for cause or default.
4. The prospective primary participant shall provide immediate written notice to the department or agency to which this Bid is submitted if at any time the prospective primary participant learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.
5. The terms "covered transaction," "debarred," "suspended," "ineligible," "lower tier covered transaction," "participant," "person," "primary covered transaction," "principal," "Bid," and "voluntarily excluded," as used in this clause, have the meanings set out in the Definitions and Coverage sections of the rules implementing Executive Order 12549. You may contact the department or agency to which this Bid is being submitted for assistance in obtaining a copy of those regulations.
6. The prospective primary participant agrees by submitting this form that, should the proposed covered transaction be entered into, it shall not knowingly enter into any lower tier covered transaction with a person who is debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction, unless authorized by the department or agency entering into this transaction.
7. The prospective primary participant further agrees by submitting this form that it will include the clause titled "Certification Regarding Debarment, Suspension, Ineligibility and Voluntary Exclusion - Lower Tier Covered Transactions," provided by the department or agency entering into this covered transaction, without modification, in all lower tier covered transactions and in all solicitations for lower tier covered transactions.
8. A participant in a covered transaction may rely upon a certification of a prospective participant in a lower tier covered transaction that is not debarred, suspended, ineligible or voluntarily excluded from the covered transaction; unless it knows that, the certification is erroneous. A participant may decide the method and frequency by which it determines the eligibility of its principals. Each participant may, but is not required to, check the Non-Purchasing List.
9. Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render in good faith the certification required by this clause. The knowledge and information of a participant is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
10. Except for transactions authorized under paragraph 6 of these instructions, if a participant in a covered transaction knowingly enters into a lower tier covered transaction with a person who is suspended, debarred, ineligible, or voluntarily excluded from participation in this transaction, in addition to other remedies available to the Federal Government, the department or agency may terminate this transaction for cause or default.



Attachment G

Drug-Free Workplace Certification

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

Identical Tie Bids – In accordance with Section 287.087, Florida Statutes, preference shall be given to businesses with drug-free workplace programs. Whenever two or more bids, which are equal with respect to price, quality and service, are received by the State or by any political subdivision for the Purchasing of commodities or contractual services, a bid received from a business that certifies that it has implemented a drug-free workplace program shall be given preference in the award process. Established procedures for processing tie bids will be followed if none of the tied contractors has a drug-free workplace program. In order to have a drug-free workplace program, a business shall:

1. Publish a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession or use of a controlled substance is prohibited in the workplace and specifying the actions that will be taken against employees for violations of such prohibition.
2. Inform employees about the dangers of drug abuse in the workplace, the business's policy of maintaining a drug-free workplace, any available drug counseling, rehabilitation and employee assistance programs, the penalties that may be imposed upon employees for drug abuse violations.
3. Give each employee engaged in providing the commodities or contractual services that are under bid a copy of the statement specified in subsection (1).
4. In the statement specified in subsection (1), notify the employees that, as a condition of working on the commodities or contractual services that are under bid, the employee will abide by the terms of the statement and will notify the employer of any conviction of, or plea of guilty or nolo contendere to, any violation of Chapter 893 or of any controlled substance law of the United States or any state, for a violation occurring in the workplace no later than five (5) days after such conviction.
5. Impose a sanction on, or require the satisfactory participation in a drug abuse assistance or rehabilitation program if such is available who is so convicted.
6. Make a good faith effort to continue to maintain a drug-free workplace through implementation of this section.

As the person authorized to sign the statement, I certify that this Bidder complies fully with the above requirements.

Bidder Name

Authorized Signature



Attachment H

Sworn Statement Pursuant to Section 287.133(3), Florida Statutes Public Entity Crime

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

We certify that we have read and understand Florida Statutes, section 287.133 Public Entity crime; denial or revocation of the right to transact business with public entities.

We understand a public entity crime, as defined in Florida Statutes, section 287.133, is a violation of any state or federal law by a person with respect to and directly related to the transaction of business with any public entity or with an agency or political subdivision of any other state or with the United States, including, but not limited to, any bid, Bid, reply, or contract for goods or services, any lease for real property, or any contract for the construction or repair of a public building or public work, involving antitrust, fraud, theft, bribery, collusion, racketeering, conspiracy, or material misrepresentation.

We understand that a person or affiliate who has been placed on the convicted bidder list following a conviction for a public entity crime may not submit a bid, bid, or reply on a contract to provide any goods or services to a public entity; may not submit a bid, Bid, or reply on a contract with a public entity for the construction or repair of a public building or public work; may not submit bids, Bids, or replies on leases of real property to a public entity; may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity; and may not transact business with any public entity in excess of the threshold amount provided in s. 287.017 for CATEGORY TWO for a period of 36 months following the date of being placed on the convicted bidder list.

Please mark an (X) next to the statement which is applicable to your entity.

_____ Neither the entity submitting this sworn statement, nor any of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in either management of the entity, nor any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989.

_____ The entity submitting this sworn statement, or one or more of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in the management of the entity, or any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989.

_____ The entity submitting this sworn statement, or one or more of its officers, directors, executives, partners, shareholders, employees, members or agents who are active in the management of the entity, or any affiliate of the entity has been charged with and convicted of a public entity crime subsequent to July 1, 1989. However, there has been a subsequent proceeding before a Hearing Officer of the State of Florida, Division of Administrative Hearings and the Final Order entered by the Hearing Officer determined that it was not in the public interest to place the entity submitting this sworn statement on the convicted bidder list (a copy of the final order is required; please attach).

Bidder Name

Authorized Signature

Notary Public

State of: _____ County of: _____

The foregoing instrument was acknowledged before me this ____ day of _____ 20__ by _____.

Notary Public Signature: _____

Commission Expires: _____

(Seal)

Personally Known _____ or Produced Identification _____

Type of Identification Produced _____



Attachment I

Sworn Statement Pursuant to Section 1012.465, Florida Statutes; The Jessica Lunsford Act

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

1. We understand that during the 2005 Legislative Session, House Bill 1877, The Jessica Lunsford Act (hereinafter “The Act” or “Act”) was passed and approved by Governor Bush on May 2, 2005, with an effective date of September 1, 2005.
2. We understand that the Act sets forth the background screening requirements of section 1012.465, Florida Statutes for all non-instructional school employees and **contractual personnel** by requiring all non-instructional School Board employees and contractual personnel who are permitted access on school grounds when students are present, who have direct contact with students or who have access to or control of school funds to meet level 2 screening requirements, as described in s. 1012.32. Further, we understand that the Act defines **contractual personnel** to include any bidder, individual, or entity under contract with a school or a school board.
3. We understand that all subcontractors assigned by the contractor must also comply with background screening requirements of s. 1012.32.
4. We further understand that every 5 years following entry into a contract, all contracted personnel or individuals assigned by the contractor who meet the conditions in section 2., above, must meet level 2 rescreening requirements as described in s. 1012.32.
5. We understand that level 2 background screening requirements, as defined in section 1012.32, Florida Statutes requires that fingerprints of all contractual personnel must be obtained and submitted to the Florida Department of Law Enforcement for state processing and to the Federal Bureau of Investigation for federal processing.
6. We understand that any costs associated with the required background screenings will be borne by the contractor.
7. We understand that if a (potential) contractor does not meet the level 2 requirements, the individual shall not be permitted to contract with the School Board and shall be immediately suspended from working in that capacity and shall remain suspended until final resolution of any appeals.
8. We understand that failure to comply with level 2 background screenings as required by section 1012.465, Florida Statutes, will disqualify the contractor from conducting business with the School Board.

Bidder Name

Authorized Signature



Attachment J

Application for Certification

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

The Application for Certification is hereby submitted to be considered to provide services as requested by Flagler County School Board. As such, I hereby authorize Flagler County School Board to obtain the information necessary to verify the information provided in the ITB Bid and concerning my professional standing and reputation.

As evidenced by my signature, I certify that this offer is made without prior understanding, agreement, or connection with any corporation, Bidder, business or person submitting an offer for the same materials, supplies, equipment, or services, and is in all respects fair and without collusion or fraud. I further agree to abide by all conditions of this invitation, school board rules, policies and procedures and certify that I am authorized to sign this response. Upon approval by the School Board, the information contained herein shall constitute the contract between the School Board and contractor.

I authorize Flagler County School Board and its authorized personnel to disclose the information provided in our application to designated personnel of other federal, state, or municipalities in the State of Florida. With the proper consent, purchases may be made under this ITB by other governmental agencies within the State of Florida. Such purchases shall be governed by the same terms and conditions as stated herein.

I further declare that we have examined the requirements and specifications for the materials to be furnished and have read all provisions prior to the submission of the response. I acknowledge that I have read, understand and agree to the terms and conditions stated in this ITB.

If my Bid is accepted, I agree to contract with the Flagler County School Board to deliver the services requested.

Bidder Name

Authorized Signature



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Attachment K

Bidder's Reference Form

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

Reference # 1

Nature of the Bidder's responsibility on the engagement: _____
Size of engagement: (in \$) _____
Client Name: _____
Client Address: _____
Client Contact: _____ Client Contact Job Title: _____
Email Address _____ Phone #: _____
Present status of engagement: _____
Comments: _____

Reference #2

Nature of the Bidder's responsibility on the engagement: _____
Size of engagement: (in \$) _____
Client Name: _____
Client Address: _____
Client Contact: _____ Client Contact Job Title: _____
Email Address _____ Phone #: _____
Present status of engagement: _____
Comments: _____

Reference # 3

Nature of the Bidder's responsibility on the engagement: _____
Size of engagement: (in \$) _____
Client Name: _____
Client Address: _____
Client Contact: _____ Client Contact Job Title: _____
Email Address _____ Phone #: _____
Present status of engagement: _____
Comments: _____



Attachment L
Local Preference

A. Application and Exclusions

1. It shall be the policy of the Flagler County School Board to afford Local Preference to local Flagler County Contractors. Local Flagler County Contractors shall mean any business that has a valid local business tax receipt within the limits of Flagler County and has a verified business (physical location, not a post office box) located within Flagler County which employees are located and from which business is regularly transacted on a day to day basis. The business employs full time employees within Flagler County for a minimum of 6 months prior to the date bids or quotes are received. These provisions apply only to Formal Bids, Request for Quotes or Proposals.

B. Local Preference Procedure

1. On competitive sealed bids up to \$250,000, the local bid preference to be awarded in this policy shall be 5% of the local business' total bid price. The total bid price shall include not only the base bid but any alternatives that are part of the bid and awarded by the School Board.
2. Competitive sealed bids over \$250,000 that have subcontracting capabilities, shall require the bidders to submit a subcontracting plan identifying local Contractors to be utilized. If bidder fails to submit such a plan, the bidder will be ineligible for award of any local Contractor preference. Local Contractor preference for bids over \$250,000 shall be 3% for the general contractor if they meet the local Contractor preference eligibility as defined in this section. The bidder can earn an additional 1/2% for each local Contractor (where such local Contractor's subcontract represents at least 5% of the total bid) and up to a maximum of 5% of the project bid total for local Contractor preference and the cost differential does not exceed \$25,000.
3. On request for proposals and quotes up to \$25,000, packages sent out shall provide for a proposal to receive up to 5% based on the local Contractor preference set up in the section.

As the person authorized to sign the statement, I certify that the firm:

_____ Has met the local Contractor requirements above (attach a valid local business tax receipt).

_____ Has **NOT** met the local Contractor requirements above.

Name of Business

Name of Authorized Official

Title of Authorized Official

Signature of Authorized Official



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Attachment M
Bidder Questionnaire

ITB No: 22-05B
ITB Title: Grounds Maintenance Services

COMPANY INFORMATION

Company Name _____

Address: _____

City: _____ State: _____ Zip _____

Phone: _____ Fax: _____

Contact for Inquiries: _____

Has Company failed to complete a contract? _____ YES _____ NO

Has Company been involved in bankruptcy or reorganization? _____ YES _____ NO

Does Company have any pending judgment claims or suits against firm? _____ YES _____ NO

If you have answered YES to any of the above questions, you MUST submit on a separate sheet the details describing the circumstances surrounding each question.

INVENTORY: Provide a list of all equipment on a separate sheet. Inventory listed must be in the vendor's full control and availability.

INSURANCE:

Insurance Company: _____

Agent Company: _____

Agent Contact: _____

Worker's Compensation Modifier for the past three (3) years: _____

SAFETY:

Have you had any OSHA fines within the last three (3) years? _____ YES _____ NO

Have you job site fatalities within the last five (5) years? _____ YES _____ NO

If you have answered YES to any of the above questions, you MUST submit on a separate sheet the details describing the circumstances surrounding each incident.

EXPERIENCE:

Years in business under present name: _____

Years performing work specialty: _____

License Number: _____

Total number of permanent staff presently employed: _____

I hereby certify that the above information is true and complete to the best of my knowledge.

Name of Authorized Official

Title of Authorized Official

Signature of Authorized Official



Attachment N
Bid Price Sheet

ITB No: 22-05B

ITB Title: Grounds Maintenance Services

Item	Description	UOM	Estimated Quantity	Unit Price	Extended Price
1	Superintendent/Foreman Labor (include, but not limited to: Installing sod, sand/fill dirt, irrigation, plants, shrubs, mulching, ground cover, and stump grinding)	Hour	300		
2	General Laborer/Crew Member Labor (include, but not limited to: Installing sod, sand/fill dirt, irrigation, plants, shrubs, mulching, ground cover, and stump grinding)	Hour	300		
3	Contractor's Owned Equipment (example: large equipment, excavators, bobcat)	Hour	70		
4	Lawn Maintenance (includes labor and equipment for: Mowing, blowing, trimming, edging, etc.)	Hour	70		
5	Trimming Palms and Trees (includes labor and equipment for: climber, truck & dump fee)	Hour	70		
6	24 Hour Response (After Hours, Emergency, Act of God)	Hour	25		
7	Additional Materials (Materials to be furnished by Contractor shall be at Contractor's actual cost, plus percentage as specified (shall not exceed 15%). Supporting documentation (proposals, quotes, receipts, invoices, etc.) will be required.	%	\$35,000.00		
8	Rental Equipment (Equipment to be furnished by Contractor, if and when requested by the School Board, shall be at Contractor's actual cost, plus percentage as specified (shall not exceed 15%). Supporting documentation (proposals, quotes, receipts, invoices, etc.) will be required.	%	\$5,000.00		
Estimated Annual Price:					

Instructions for completing the Bid Price Sheet:

Items 1 - 6: Bidders shall list the Unit Price. To calculate the Extended Price, multiply the Unit Price by the respective Estimated Quantity.

Items 7 - 8: Bidders shall list the Percentage Markup. To calculate the Extended Price, multiply the Percentage Markup by the Estimated Quantity and add the two together. (Example: Contractor material costs are \$10,000. Percentage Markup is 8%. The charge to FCSB would be $\$10,000 \times 8\% = \$800 + \$10,000 = \$10,800$. In this example, \$10,800 would be bidder's Extended Price.)

No negative multipliers, negative rates or fractions of percentages will be accepted. FCSB will not alter or correct any mathematical or other errors in this section. In the event an error in calculations is found, the unit price bid will be used to determine the correct extended price.

Company Name

Authorized Signature